

9. 9:00 AM CASE NUMBER: C22-01852
CASE NAME: MANSOUR BOROUMAND VS. MOJGAN SHAHBAZI
*HEARING ON MOTION IN RE: LEAVE TO FILE AN AMENDMENT TO ANSWER (ADVANCED FROM 8/19/26)
FILED BY: SHAHBAZI, MOJGAN
TENTATIVE RULING:

Parties to appear. Defendants Mojgan Shahbazi, Matthew Gheisari, and Oakley Road Holdings, LLC, bring this motion to file an amended answer to the complaint of plaintiff Mansour Boroumand, who opposes the motion. Because defendants have failed to comply with the California Rules of Court, rule 3.1324, parties shall appear to discuss next steps.

Background and Discussion

On August 31, 2022, plaintiff brought suit alleging causes of action for breach of contract and cancellation of instrument. Plaintiff claims to own 50% of defendant, Oakley Road Holdings, LLC, which, in turn, owns a real estate parcel in the City of Oakley. Plaintiff's ownership interest is alleged to derive from a loan of \$950,000 made by plaintiff to the LLC. The loan was memorialized in a Convertible Promissory Note, which was subsequently converted via a Note Conversion Agreement into Plaintiff's alleged 50% ownership interest. Defendants answered and cross-complained on October 24, 2022. They twice filed amended cross-complaints before dismissing the Second Amended Cross-Complaint in August of 2023.

On March 11, 2026, defendants filed this motion to file "an amendment" to their answer. A jury trial is currently set for June 1, 2026, just less than five weeks from the hearing on this motion.

The motion is supported by a Declaration of Christopher J. Dyas, defendants' counsel. The declaration states that Mr. Dyas first became involved in the action in 2024 and, since that time, has discussed the "new" defenses at issue here with each of the three attorneys that have represented plaintiff since Mr. Dyas' involvement.

Defendants seek leave to add *unspecified text* in order to:

- (1) "clarify" that their Ninth Affirmative Defense, which alleges failure of consideration because plaintiff failed to transfer the real property, encompasses plaintiff's failure to transfer money as well;
- (2) to assert a failure of consideration in connection with the Note Conversion Agreement because its sole consideration was the Promissory Note, which defendants contend is void and invalid because of its failure of consideration; and,
- (3) to assert the Note Conversion Agreement was never signed by defendants, and that their purported signatures were forged.

(Memorandum of Points and Authorities in Support of Motion, 3:18-4:2)

Plaintiff's opposition does not dispute the policy generally favoring amendment, but plaintiff argues in this case it would be unjust based on the sham pleading doctrine. Plaintiff specifically takes issue with the forgery assertions, pointing to the cross-complaint, as well as the amended and second amended cross-complaints, in which defendants pleaded that they signed the Note Conversion Agreement. Plaintiff additionally notes that counsel Dyas was the one to sign the Second Amended Cross-Complaint in July of 2023, significantly earlier than Dyas states he was involved in the litigation.

Plaintiff also argues that dismissal of the cross-complaint does not change the effect of the judicial admissions therein. Alternatively, if the Court does grant the motion, plaintiff asserts trial should be continued to allow plaintiff to file a demurrer and/or motion to strike.

The reply points out, inter alia, that defendants only challenge one of the three proposed amendments, and argues that the purported judicial admission regarding forgery should be used for impeachment, not to prohibit the filing of an amended answer. Defendants do not respond to the argument that they completely failed to comply with the requirements of California Rules of Court, rule 3.1324.

California Rules of Court, rule 3.1324, subdivision (a), provides that a motion to amend a pleading must include a copy of the proposed amendment or amended pleading and what allegations are proposed to be added or deleted by page, paragraph, and line number, the additional allegations are located. In addition, such a motion must be supported by a declaration which specifies (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

The Court notes the liberal standard for granting a party, particularly a defendant, leave to amend. (See Code of Civil Procedure § 473(a)(1); see also, e.g., *Lincoln Prop. Co., N.C., Inc. v. Travelers Indem. Co.* (2006) 137 Cal.App.4th 905, 916 [court should exercise this discretion liberally in favor of amendments].) “In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense.” (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159, citing cases.)

Generally, the validity of a proposed amendment is generally not considered in deciding whether to grant leave to amend. (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281 [disapproved on other grounds in *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390, 407.])

As suggested by plaintiff’s opposition, such challenges to the pleadings are more properly addressed in a demurrer or a motion to strike rather than in an opposition to a motion to amend. Still, the upcoming jury trial, as well as defendants’ failure to comply with the requirements in Rule 3.1324 to explain the delay and submit a copy of the proposed pleading require an appearance and discussion on these matters.

10. 9:00 AM CASE NUMBER: C22-02429
CASE NAME: HERMITAGE BREWING CORPORATION VS. CALICRAFT LLC
***HEARING ON MOTION IN RE: CONTINUE TRIAL**

FILED BY: CALICRAFT LLC

TENTATIVE RULING:

Summary

Defendant Calicraft LLC’s Motion to Continue Trial is **granted** based on the Declaration of its lead trial counsel that he will be unavailable due to a pending medical procedure. This ruling is based on three conditions: (1) Discovery is closed, except for expert discovery; (2) Counsel Josh Davis is ordered to provide additional information from his health care provider that verifies the facts set forth in his declaration filed on April 22, 2026 no later than ten (10) from the date of this order. Medical records or detailed medical information may be submitted under seal; (3) Counsel are ordered to meet and